ORDER BY FRANK L. POLK UNDER AUTHORITY
OF EXECUTIVE ORDER OF DECEMBER 3, 1918.

AN ORDER CONCERNING THE SALE, TRANSFER AND RELEASE OF CERTAIN RIGHTS UNDER LETTERS PATENT, TRADEMARKS AND SIMILAR RIGHTS DETERMINED TO BELONG TO OR TO BE HELD FOR, BY, ON ACCOUNT OF OR ON BEHALF OF OR FOR THE BENEFIT OF PERSONS DETERMINED TO BE ENEMIES NOT HOLDING A LICENSE OR LICENSES GRANTED BY THE PRESIDENT WITHIN THE PURVIEW OF THE TRADING WITH THE ENEMY ACT AND THE AMENDMENTS THERETO.

****

By virtue of the authority vested in the President by an Act of Congress entitled "An Act to define, regulate and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30th, 1918, and prior fiscal years on account of War expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of War expenses and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, which authority has been delegated to me by the Executive Order No. 3016 and signed by the President under the third day of December, 1918, I hereby, in the public interest make the following determination and order:

The Alien Property Custodian may release and discharge the United States of America and any department thereof upon such terms and conditions as to the Alien Property Custodian may seem proper, from any and all claims and demands arising from any alleged infringement of the letters patent, trademarks and rights under letters patent and trademarks hereinafter referred to.

3016-C

The Alien Property Custodian may sell at private sale without public or other advertisement tp The Chemical Foundation, Inc., a corporation organized and existing under and by virtue of the laws of the State of Delaware at such place and upon such terms and conditions as to the Alien Property Custodian or his authorized agent may seem proper, all of the letters patent, trademarks and rights under letters patent and trademarks, including all profits and damages recoverable at law or in equity for the past infringement thereof which the Alien Property Custodian may seize or may have seized under the provisions of the said Trading with the Enemy Act and the amendments thereto, now or hereafter enacted and which he from time to time shall determine relate to the objects and purposes of said The Chemical Foundation, Inc., as expressed and defined by its charter.

My reasons in the public interest for the foregoing determination, order, rule and regulation are:

First: Said letters patent, trademarks and similar rights can not be sold to the best advantage at public sale after public or other advertisement.

Second: The Chemical Foundation, Inc., has been incorporated for the purpose of holding letters patent, trademarks and similar rights relating to the chemical and a[illegible]d sciences as a trustee for American industry, for the purpose of the Americanization of such industries as may be affected thereby, of eliminating alien interests hostile to said American industries and of the advancement of chemical and allied industry in the United States. The Chemical Foundation, Inc., is obligated to grant non-exclusive licenses upon equal terms at a uniform royalty to qualified American manufacturers and is empowered to grant free licenses to the United States for any use the United States may desire to make of the inventions covered by said letters patent, and similar rights.

Third: The public interest will be best served by a wide use of the inventions covered by said letters patent and similar rights and such wide use can be most readily promoted by the licenses which the said The Chemical Foundation, Inc. is by its charter obligated to grant.

Fourth: A private sale will prevent said letters patent, trademarks and similar rights from falling into the hands of purchasers who would be unwilling or unable to put the inventions covered thereby into use, or would use them for purely speculative purposes.

Fifth: It would be impossible to make a public sale of the said letters patent, trademarks and similar rights so as to secure the foregoing benefits to the public.

Sixth: Unnecessary expense, delay and inconvenience may be avoided by a private sale.

Done in the District of Columbia, this, the 26th day of February in the year of our Lord one thousand nine hundred and nineteen and of the Independence of the United States of America, the one hundred and forty-third.

Frank L. Polk

4